



Registration of a Charge

Company Name: **ALPHA FINANCIAL MARKETS CONSULTING UK LIMITED**

Company Number: **04710715**



Received for filing in Electronic Format on the: **13/12/2024**

XDHVX075

Details of Charge

Date of creation: **10/12/2024**

Charge code: **0471 0715 0006**

Persons entitled: **GLAS TRUST CORPORATION LIMITED (AS SECURITY AGENT)**

Brief description:

Contains fixed charge(s).

Contains floating charge(s) .

Contains negative pledge.

Authentication of Form

This form was authorised by: **a person with an interest in the registration of the charge.**

Authentication of Instrument

Certification statement: **I CERTIFY THAT SAVE FOR MATERIAL REDACTED PURSUANT TO S.859G OF THE COMPANIES ACT 2006 THE ELECTRONIC COPY INSTRUMENT DELIVERED AS PART OF THIS APPLICATION FOR REGISTRATION IS A CORRECT COPY OF THE ORIGINAL INSTRUMENT.**

Certified by: **MILBANK LLP**



CERTIFICATE OF THE REGISTRATION OF A CHARGE

Company number: 4710715

Charge code: 0471 0715 0006

The Registrar of Companies for England and Wales hereby certifies that a charge dated 10th December 2024 and created by ALPHA FINANCIAL MARKETS CONSULTING UK LIMITED was delivered pursuant to Chapter A1 Part 25 of the Companies Act 2006 on 13th December 2024 .

Given at Companies House, Cardiff on 19th December 2024

The above information was communicated by electronic means and authenticated by the Registrar of Companies under section 1115 of the Companies Act 2006



Companies House



THE OFFICIAL SEAL OF THE
REGISTRAR OF COMPANIES

EXECUTION VERSION

SECURITY ACCESSION DEED

THIS SECURITY ACCESSION DEED is made on 10 December 2024

BETWEEN:

- (1) **ALPHA FINANCIAL MARKETS CONSULTING UK LIMITED** a private company with limited liability incorporated under the laws of England and Wales, and its registered office at 60 Gresham Street, London, United Kingdom, EC2V 7BB and with registered number 04710715 (the **Additional Chargor**)
- (2) **ACTIUM MIDCO 2 (UK) LIMITED** a private company with limited liability incorporated under the laws of England and Wales, and its registered office at 5 Marble Arch, London, United Kingdom, W1H 7EJ and with registered number 15735686 (the **Parent**); and
- (3) **GLAS TRUST CORPORATION LIMITED** as security trustee for itself and the other Secured Parties (the **Security Agent**).

RECITAL:

The Additional Chargor has agreed to enter into this Security Accession Deed and to become a Chargor under a debenture dated 16 August 2024 between the Original Chargor(s) named therein and the Security Agent, as previously supplemented and amended by earlier Security Accession Deeds (if any) (the **Debenture**). This Security Accession Deed is supplemental to the Debenture.

NOW THIS DEED WITNESSES as follows:

1. INTERPRETATION

1.1 Definitions

Terms defined in the Debenture shall have the same meaning when used in this Security Accession Deed or in any notice given under or in connection with this Security Accession Deed.

1.2 Construction

- (a) Clause 1.2 (Incorporation by reference) to Clause 1.4 (Incorporation of provisions from the Intercreditor Agreement) of the Debenture will be deemed to be set out in full in this Security Accession Deed, but as if references in those clauses to the Debenture were references to this Security Accession Deed.
- (b) All the provisions contained in the Debenture in relation to the Security created by it and all the powers and rights conferred on the Security Agent and any Receiver in relation to the Security created by the Debenture shall extend and apply to the Security created by this Security Accession Deed.
- (c) This Security Accession Deed is a Debt Document.

2. COMMON PROVISIONS

All the Security created by or pursuant to this Security Accession Deed is:

- (a) created with full title guarantee provided that the covenant set out in section 3 Law of Property (Miscellaneous Provisions) Act 1994 shall not extend to the Security;

- (b) created in favour of the Security Agent as trustee for the Secured Parties and the Security Agent shall hold the benefit of this Security Accession Deed and the Security created by or pursuant to it on trust for the Secured Parties; and
- (c) continuing security for the payment and discharge of all the Secured Obligations.

3. ACCESSION OF THE ADDITIONAL CHARGOR

3.1 Accession

The Additional Chargor agrees to be a Chargor for the purposes of the Debenture with immediate effect and agrees to be bound by all of the terms of the Debenture as if it had originally been a party to it as a Chargor (but so that the Security created by virtue of this deed shall be created on the date of this Security Accession Deed).

3.2 Covenant to pay

Subject to any limits on liability as specified in the Debt Documents, the Additional Chargor covenants with the Security Agent (for the benefit of itself and the other Secured Parties) that it shall, on demand of the Security Agent pay, discharge and satisfy the Secured Obligations in accordance with the terms of the Debt Documents.

3.3 Specific Security

The Additional Chargor, as continuing security for the payment of the Secured Obligations, charges in favour of the Security Agent the following assets, both present and future, from time to time owned by it or in which it has an interest:

- (a) by way of first fixed charge, all of its rights, title and interest from time to time in and to its Accounts including, without limitation, those listed in Schedule 3 (Accounts) of this Security Accession Deed, and all Related Rights;
- (b) by way of first fixed charge, all of its rights, title and interest from time to time in and to its Intercompany Receivables including, without limitation, those listed in Schedule 4 (Intercompany Receivables Agreements) of this Security Accession Deed, and all Related Rights; and
- (c) by way of first fixed charge, all of its rights, title and interest from time to time in and to the Shares including, without limitation, those listed in Schedule 2 (Shares) of this Security Accession Deed and all dividends, distributions, interest and other monies payable in respect of those Shares together with all shares or other property derived from the Shares and all other allotments, accretions, rights, benefits and advantages of all kinds accruing, offered or otherwise from the Shares and all Related Rights (whether derived by way of redemption, bonus, preference, options, substitution, conversion, compensation or otherwise).

3.4 Floating charge

- (a) The Additional Chargor charges by way of first floating charge in favour of the Security Agent all present and future assets and undertakings of the Additional Chargor.
- (b) The floating charge created pursuant to paragraph (a) above shall be deferred in point of priority to all Fixed Security validly and effectively created by the Additional Chargor under the Debt Documents in favour of the Security Agent as security for the Secured Obligations.

- (c) Paragraph 14 of Schedule B1 to the Insolvency Act 1986 applies to the floating charge created pursuant to paragraph (a) above.

3.5 Property Restricting Charging

For the avoidance of doubt, Clause 6.8 (Property Restricting Charging) of the Debenture shall apply to this Security Accession Deed.

4. POWER OF ATTORNEY

The Additional Chargor by way of security irrevocably appoints the Security Agent and any Receiver severally to be its attorney in accordance with the terms set out in Clause 17.1 (Appointment and powers), Clause 17.2 (Use of powers) and Clause 17.3 (Ratification) of the Debenture.

5. NEGATIVE PLEDGE AND RESTRICTION ON DEALINGS

Except as permitted under each of the Debt Documents, the Additional Chargor shall not at any time during the Security Period create or permit to subsist any Security over all or any part of its Charged Assets or dispose of any part of its Charged Assets.

6. IMPLIED COVENANTS FOR TITLE

The covenants set out in section 3(1) and 3(2) of the Law of Property (Miscellaneous Provisions) Act 1994 will not extend to Clause 3.3 (Specific Security) or Clause 3.4 (Floating charge).

7. FURTHER ADVANCES

Subject to the terms of the Debt Documents, the Secured Parties may be under an obligation to make further advances to the Debtors and that obligation will be deemed to be incorporated in this Security Accession Deed as if set out in this Security Accession Deed.

8. CONSENT OF EXISTING CHARGOR

The Parent agrees and consents for itself and on behalf of each of the existing Chargors to the terms of this Security Accession Deed and further agrees that its execution will in no way prejudice or affect the security granted by each of the existing Chargors under (and covenants given by each of them in) the Debenture or any other Security Accession Deed.

9. EXTENSION OF POWER OF SALE

The power of sale or other disposal conferred on the Security Agent and on any Receiver by the Debenture and this Security Accession Deed shall operate as a variation and extension of the statutory power of sale under section 101 of the Law of Property Act 1925 and such power shall arise (and the Secured Obligations shall be deemed due and payable for that purpose) on the date of this Security Accession Deed.

10. RESTRICTIONS

The restrictions contained in sections 93 and 103 of the Law of Property Act 1925 shall not apply to this Security Accession Deed or to the exercise by the Security Agent of its right to consolidate all or any of the Security created by or pursuant to this Security Accession Deed with any other Security in existence at any time or to its power of sale, which powers may be exercised by the Security Agent without notice to the Additional Chargor on or at any time after the Security created by or pursuant to this Security Accession Deed has become enforceable in accordance with Clause 11 (Enforcement of Security) of the Debenture.

11. CONSTRUCTION OF DEBENTURE

The Debenture and this Security Accession Deed shall be read together as one instrument on the basis that references in the Debenture to "this deed" or "this Debenture" will be deemed to include this Security Accession Deed.

12. NOTICES

The Additional Chargor confirms that its address details for notices are as set out in the applicable Accession Deed (or as otherwise updated in accordance with the Intercreditor Agreement)

13. COUNTERPARTS

This deed may be executed in any number of counterparts, and this has the same effect as if the signatures on the counterparts were on a single copy of this deed.

14. GOVERNING LAW

This deed (including any non-contractual obligations arising out of or in relation to this deed) and any dispute or proceedings arising out of or relating to this deed shall be governed by English law.

IN WITNESS whereof this Security Accession Deed has been duly executed on the date first above written.

SCHEDULE 1
ADDITIONAL CHARGORS

<u>Name of Additional Chargor</u>	<u>Registered Number</u>	<u>Country of incorporation</u>
Alpha Financial Markets Consulting UK Limited	04710715	England and Wales

SCHEDULE 2

SHARES

[None at the date of this Security Accession Deed]

SCHEDULE 3
ACCOUNTS

Name of the institution at which account is held	Currency	Account details
HSBC UK Bank PLC 1 Centenary Square, Birmingham, B1 1HQ	EUR	Sort code: [REDACTED] Account number: 7025 [REDACTED]
	GBP	Sort code: [REDACTED] Account number: 9219 [REDACTED]
	GBP	Sort code: [REDACTED] Account number: 4059 [REDACTED]
	USD	Sort code: [REDACTED] Account number: 7025 [REDACTED]
Lloyds Bank plc 25 Gresham Street, London, EC2V 7HN	EUR	Sort code: [REDACTED] Account number: 8656 [REDACTED]
	GBP	Sort code: [REDACTED] Account number: 1416 [REDACTED]
	USD	Sort code: [REDACTED] Account number: 1185 [REDACTED]

SCHEDULE 4**INTERCOMPANY RECEIVABLES**

<u>Intra-group debtor</u>	<u>Description</u>
AIVIQ Limited	Intra-group loan between Alpha Financial Markets Consulting UK Limited as lender and AIVIQ Limited as borrower.
AXXSYS Limited	Intra-group loan between Alpha Financial Markets Consulting UK Limited as lender and AXXSYS Limited as borrower.
Alpha FMC Bidco Limited	Intra-group loan between Alpha Financial Markets Consulting UK Limited as lender and Alpha FMC Bidco Limited as borrower.
Lionpoint Group (UK) Limited	Intra-group loan between Alpha Financial Markets Consulting UK Limited as lender and Lionpoint Group (UK) Limited as borrower.
Alpha Financial Markets Consulting Mena Limited	Intra-group loan between Alpha Financial Markets Consulting UK Limited as lender and Alpha Financial Markets Consulting Mena Limited as borrower.

SIGNATORIES

TO SECURITY ACCESSION DEED

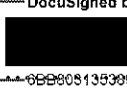
THE ADDITIONAL CHARGORS

EXECUTED AS A DEED

for and on behalf of:

ALPHA FINANCIAL MARKETS CONSULTING UK LIMITED

By:  DocuSigned by:
..... 3BA195CA447B414... Signature of Director
John Paton
..... Name of Director

By:  DocuSigned by:
..... 6BB808135309425... Signature of Director
Greg Cook
..... Name of Director

PARENT

For and on behalf of:

ACTIUM MIDCO 2 (UK) LIMITED

By: .....
DocuSigned by:
John Paton 50A15C0417041A...

Name: John Paton

Title: Director

THE SECURITY AGENT

For and on behalf of:

GLAS TRUST CORPORATION LIMITED

By: 

Name: Emma Batchelor

Title: Transaction Management Group Team Leader

Address: 55 Ludgate Hill, Level 1, West, London EC4M 7JW, United Kingdom

E-mail: tmg@glas.agency

Attention: Transaction Management Group (Project Atlas)